

56	Stoddard vs. Kia Motors America, Inc. 20-01159610	Motion for Attorney Fees, Motion to Strike or Tax Costs, & Motion to Strike or Tax Costs NO TENTATIVE RULING – Parties to appear on Zoom or in-person.
57	Monteiro vs. BMW of North America, LLC 24-01439792	Motion for Summary Judgment and/or Adjudication Defendant BMW of North America, LLC (“BMW”)’s motion for summary judgment against Plaintiff Briana Monteiro is GRANTED for the reasons set forth below. <u>Evidentiary Objection</u> Plaintiff’s evidentiary objection to Grube Declaration ¶ 8 is OVERRULED. <u>General Legal Authority</u> Under Code of Civil Procedure section 437c(c), a summary judgment motion shall be granted if all the papers submitted show there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. A defendant meets its burden on summary judgment by showing that the plaintiff cannot prove its causes of action, or by establishing a complete defense to the plaintiff’s causes of action. (Code Civ. Proc., 437c(p)(2).) If a defendant does not meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (<i>Binder v. Aetna Life Ins. Co.</i> (1999) 75 Cal.App.4th 832, 840.) If the defendant meets this initial burden, the burden shifts to the plaintiff to produce evidence demonstrating the existence of a triable issue of material fact. (Code Civ. Proc., § 437c(p)(2); <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850-851.) The nonmoving party must present substantial evidence in order to avoid summary judgment. (<i>Sangster v. Paetkau</i> (1998) 68 Cal.App.4th 151, 163.) “In some instances . . . , ‘evidence may be so lacking in probative value that it fails to raise any triable issue.’” (<i>Whitmire v. Ingersoll-Rand Co.</i> (2010) 184 Cal.App.4th 1078, 1083-1084, quoting <i>Advanced Micro Devices, Inc. v. Great American Surplus Lines Ins. Co.</i> (1988) 199 Cal.App.3d 791, 795.) “‘If the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial.’” (<i>Saelzler v. Advanced Group 400</i> (2001) 25 Cal.4th 763, 780, quoting <i>Leslie G. v. Perry & Associates</i> (1996) 43 Cal.App.4th 472, 482.) In ruling on a motion for summary judgment, “the court must ‘consider all of the evidence’ and ‘all’ of the ‘inferences’ reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party.” (<i>Aguilar v. Atlantic Richfield Co.</i> , <i>supra</i> , 25 Cal.4th at p. 843, citations omitted.) Courts “‘construe the moving party’s affidavits strictly, construe the opponent’s affidavits liberally, and resolve doubts about the propriety of granting the motion in favor of the party opposing it.’” (<i>Unilab Corp. v. Angeles-IPA</i> (2016) 244 Cal.App.4th 622, 636, quoting <i>Seo v. All–Makes Overhead Doors</i> (2002) 97 Cal.App.4th 1193, 1201–1202.) A court may not make credibility determinations or weigh the evidence on a motion for

		summary judgment, and all evidentiary conflicts are to be resolved against the moving party. (<i>McCabe v. American Honda Motor Corp.</i> (2002) 100 Cal.App.4th 1111, 1119.) “The court . . . does not resolve issues of fact. The court seeks to find contradictions in the evidence, or inferences reasonably deducible from the evidence, which raise a triable issue of material fact.” (<i>Johnson v. United Cerebral Palsy, etc.</i> (2009) 173 Cal.App.4th 740, 754, citation omitted.) “[S]ummary judgment cannot be granted when the facts are susceptible [of] more than one reasonable inference . . .” (<i>Rosas v. BASF Corp.</i> (2015) 236 Cal.App.4th 1378, 1392.) <u>Allegations in the Complaint</u> The court first reviews the complaint because the pleadings define the issues addressed in a summary judgment motion. (<i>Scott Co. v. United States Fidelity & Guaranty Ins. Co.</i> (2003) 107 Cal.App.4th 197, 213 disapproved of on other grounds in <i>Le Francois v. Goel</i> (2005) 35 Cal.4th 1094, 1101.) Plaintiff’s complaint for violation of the Song-Beverly Consumer Warranty Act alleges, in pertinent part, as follows: Plaintiff purchased a 2019 BMW 330i Sedan from Irvine BMW on January 4, 2020. (Compl., ¶ 4.) BMW issued express warranties covering the vehicle’s utility and performance. (Compl., ¶¶ 9-10.) The vehicle suffered from repeated defects, including transmission malfunctions, inability or delay in shifting gears, rough or jerking shifts, RPM surging, engine shaking during operation, and Automatic Start/Stop system defects. (Compl., ¶ 11.) Plaintiff presented the vehicle to BMW or its authorized repair facilities at least eight times, but the vehicle was returned without the defects being properly repaired. (Compl., ¶¶ 11-12.) BMW failed to repair the vehicle within a reasonable number of attempts and failed to replace the vehicle or provide restitution. (Compl., ¶¶ 13, 17.) <u>BMW’s Motion for Summary Judgment</u> BMW moves for summary judgment on the ground that Plaintiff’s Song-Beverly cause of action is barred because Plaintiff purchased the Subject Vehicle used, and a used vehicle does not qualify as a “new motor vehicle” under the Song-Beverly Consumer Warranty Act. The Song-Beverly Act (the “Act”) is a remedial statute designed to protect consumers who have purchased products covered by an express warranty. (<i>Robertson v. Fleetwood Travel Trailers of California, Inc.</i> (2006) 144 Cal.App.4th 785, 798.) The Act “provides enhanced remedies to consumers who buy new consumer goods accompanied by a manufacturer’s express warranty (§ 1793.2.) ... The same protections generally apply to the sale of used goods accompanied by an expressed warranty, except that the distributor or retail seller is bound, as opposed to the manufacturer” (<i>Kiluk v. Mercedes-Benz USA, LLC</i> (2019) 43 Cal.App.5th 334, 336 [footnote omitted].) Section 1793.2 of the Song-Beverly Act is titled “Consumer good manufacturers; express warranties; service and repair facilities.” (Civ. Code, § 1793.2.) Subsection (b) requires a manufacturer to “service[] or repair[] goods” in conformance with “the applicable warranties within 30 days.” (Id. at 1793.2, subd. (b).) Subdivision (a)(3) requires “manufacturer[s] of consumer goods ... for which the manufacture has made an express warranty” to “[m]ake available to authorized service and repair facilities sufficient service literature and
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		replacement parts to effect repairs during the express warranty period.” (Id. at § 1793.2, subd. (a)(3).) Civil Code section 1793.2, subdivision (e)(2) defines “ ‘new motor vehicle’ ” to include “a new vehicle ‘bought or used primarily for personal purposes’ as well as ‘a dealer-owned vehicle and a “demonstrator” or other motor vehicle sold with a manufacturer’s new car warranty.’ ” (<i>Rodriguez v. FCA US LLC</i> (2024) 17 Cal.5th 189, 195 (“<i>Rodriguez</i>”).) The Act defines the parties who issue warranties as follows. A manufacturer is an entity “that manufactures, assembles, or produces consumer goods.” (Civ. Code, § 1791, subd. (j).) In <i>Rodriguez</i>, the California Supreme Court clarified that a vehicle purchased with only the remaining balance of an unexpired manufacturer’s warranty does not qualify as a vehicle “sold with a manufacturer’s new car warranty” unless the warranty was issued at the time of that sale. (<i>Rodriguez, supra</i>, 17 Cal.5th at p. 196.) Accordingly, the Act’s protections for “new motor vehicles” do not apply where no new manufacturer’s warranty accompanies the sale. (<i>Id.</i> at pp. 195–196.) <u>BMW submits the following evidence:</u> On January 4, 2020, Plaintiff Briana Monteiro (“Plaintiff”) purchased a used 2019 BMW 330i from Irvine BMW. (DSS No. 1; Ex. A, Motor Vehicle Retail Installment Contract, Bates BMW000700–BMW000706, produced May 6, 2025, verification provided May 7, 2025.) At the time of purchase, the subject vehicle had 9,972 miles on the odometer. (DSS No. 2; Ex. A [Motor Vehicle Retail Installment Contract, Bates BMW000700–BMW000706, produced May 6, 2025, verification provided May 7, 2025].) The subject vehicle was sold as a used vehicle and was not sold as a BMW Certified Pre-Owned vehicle. (DSS No. 3; Ex. A [Motor Vehicle Retail Installment Contract, Bates BMW000700–BMW000706, produced May 6, 2025, verification provided May 7, 2025]; Ex. D [Declaration of Chris Grube (“Grube Decl.”), ¶¶ 7–15].) The subject vehicle’s original in-service date was April 16, 2019, when the 4-year/50,000-mile New Vehicle Limited Warranty commenced. (DSS No. 4; Ex. B [2019 BMW Warranty Booklet, Bates BMW000640–BMW000699, produced May 6, 2025, verification provided May 7, 2025].) When Plaintiff purchased the subject vehicle, she received only the remaining balance of the original 4-year/50,000-mile New Vehicle Limited Warranty. (DSS No. 5; Ex. B [2019 BMW Warranty Booklet, Bates BMW000640–BMW000699, produced May 6, 2025, verification provided May 7, 2025]; Ex. D [Grube Decl., ¶ 12].) BMW did not issue any new warranty when the subject vehicle was sold to Plaintiff on January 4, 2020. (DSS No. 6; Ex. D [Grube Decl., ¶¶ 12–13].) BMW and Irvine BMW are separate entities. (DSS No. 7; Ex. D [Grube Decl., ¶ 11].)
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		Any alleged certification of the subject vehicle by Irvine BMW did not require BMW to provide any additional warranty and did not extend any BMW warranty coverage. (DSS No. 8; Ex. D [Grube Decl., ¶¶ 7–16].) The only warranty provided by BMW in connection with the subject vehicle was the remaining balance of the original 4-year/50,000-mile New Vehicle Limited Warranty, whichever occurred first. (DSS No. 9; Ex. B [2019 BMW Warranty Booklet, Bates BMW000640–BMW000699, produced May 6, 2025, verification provided May 7, 2025]; Ex. D [Grube Decl., ¶¶ 7–16].) On November 13, 2024, Plaintiff filed this action alleging a single cause of action for violation of the Song-Beverly Consumer Warranty Act based on breach of express warranty. (DSS No. 10; Ex. C [Complaint].) BMW is the only named defendant in this action, and Irvine BMW is not named as a defendant. (DSS No. 11; Ex. C, [Complaint].) BMW’s evidence shows Plaintiff’s purchase did not include a manufacturer’s new car warranty issued at the time of sale. Under <i>Rodriguez</i>, this is dispositive. Because the subject vehicle was not “sold with a manufacturer’s new car warranty,” Plaintiff cannot invoke the Act’s remedies applicable to new motor vehicles against BMW. (<i>Rodriguez</i>, at p. 200.) Plaintiff, in opposition, argues <i>Rodriguez</i> does not bar her Song-Beverly claim because the subject vehicle qualifies as a “new motor vehicle” under Civil Code section 1793.22, subdivision (e)(2), as Plaintiff was the first consumer/registered owner and the vehicle had not previously been sold to a private consumer. Plaintiff submits a copy of the Carfax Report, which identifies the subject vehicle as a one-owner vehicle. (Opposition, Hollins Decl., ¶ 3, Ex. A.) However, even if Plaintiff was the first retail owner, the relevant inquiry is whether the manufacturer’s new car warranty was issued with Plaintiff’s sale. (<i>Rodriguez, supra</i>, 17 Cal.5th at pp. 196, 200.) The Supreme Court explained that dealer-owned vehicles and demonstrators qualify as “new motor vehicles” because, upon sale to the first retail buyer, the manufacturer or its representative treats the vehicle as new by issuing a manufacturer’s new car warranty with that transaction. (<i>Id.</i> at pp. 198-200.) Thus, Plaintiff’s status as the first consumer purchaser or first registered owner is not, by itself, dispositive under <i>Rodriguez</i>. Plaintiff does not submit evidence raising a triable issue as to whether BMW issued a new manufacturer’s warranty when she purchased the subject vehicle. Although Plaintiff contends the vehicle was dealer-owned or had not previously been sold to a private consumer, that evidence does not show BMW issued a new warranty, reinstated or extended the warranty, or that a new manufacturer’s warranty otherwise arose from Plaintiff’s transaction. Because Plaintiff received only the remaining balance of the original BMW warranty, and because BMW did not issue a new or additional warranty with Plaintiff’s purchase, the subject vehicle does not qualify as a “new motor vehicle” under Civil Code section 1793.22, subdivision (e)(2). Since Plaintiff failed to raise a triable issue of material fact, BMW is entitled to summary judgment. BMW to give notice.
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